

Response: Stage 1 dispute under clause 1.11, and leave for the period 20 July – 2 August 2026

Cory Lea Shepherd, AO3 Switchboard Services, Logan Hospital · MSH-INJ-5795 · CLM-317073 · 4 August 2026
To: Ms Chloe Taylor, Manager, Switchboard Services · Copies: LBH Human Resources; LBH Injury Management; Together Queensland

Dear Ms Taylor,

Thank you for your response of 4 August 2026, and for confirming the dispute has been received and is under review. Thank you also for the information about the Employee Assistance Program. I appreciate you writing to me directly, and I would like to resolve this with you at Stage 1 if we possibly can.

1 Answering before the payroll cut-off

I do not consent to my recreation leave balance being applied to the period 20 July to 2 August 2026, or to any part of that period being recorded as sick leave without pay. That balance is my own accrued entitlement, and once it is consumed it cannot be restored except by re-credit.

If the Health Service's position is that a leave type must be recorded for the period pending resolution of the dispute, I request that it be **special leave on full pay** under Directive 12/24: Special Leave (applied by clause 9.12.1 of the Agreement) and HR Policy C7. I acknowledge that approval under clause 6.1 of the Directive is discretionary and ordinarily capped, with more available where the chief executive considers the circumstances warrant it; I ask that the discretion be exercised here because the absence does not arise from any application by me for leave; it arises from the Health Service's own direction, while I am ready, willing and able to work within the restrictions certified on 3 July 2026. If paid special leave is refused, could the reason be stated, having regard to the matters clause 6.5 requires to be considered, together with the instrument actually relied on for each day of the period.

I am not asking the Health Service to withhold payment from me. If, notwithstanding the above, recreation leave is applied, I ask only that it be recorded as applied at the Health Service's initiative, without my consent, without prejudice to the dispute, and subject to re-credit as the dispute seeks.

2 My understanding of the position

So that we are working from the same facts, my understanding is:

- 2.1 On 26 June 2026 I was advised that the position had changed and that I could not attend until medical clearance was received; that position was repeated on 2 July 2026, with a deadline of 2:00pm on 3 July 2026.
- 2.2 On 3 July 2026 I provided the Employee Capabilities Checklist, which certified me fit for work with restrictions.
- 2.3 Within the hour I was advised that I could not attend.
- 2.4 My pay ceased from 13 July 2026, and leave has been debited since.
- 2.5 I have asked on several occasions for the instrument under which I am being kept from work, and I have not yet received an answer.

Your letter refers to the position since 3 July 2026; the dispute concerns the position from 26 June 2026, which is why the dates above matter to the leave and pay in question. If any part of my understanding is inaccurate, please tell me and I will correct my own records.

3 Seven questions, so the correct arrangement can be applied

I ask these in good faith. My concern is simply that whatever arrangement applies to me is the right one under the instruments, so that it can be administered correctly and I am not disadvantaged while the dispute is being resolved. If it is easier, you are very welcome to answer them inline by email. If any answer sits with Human Resources, Injury Management, or a more senior decision-maker, please escalate it within Stage 1 so that the seven days are not lost. I am happy for the right person to respond

directly.

- 3.1 Your letter refers to “the decision that has prevented you from attending your rostered shifts”. Could you please tell me what that decision was made under (which instrument, policy or directive), who made it, and on what date?
- 3.2 If the arrangement is a suspension under section 101 of the *Public Sector Act 2022*, could I please be given the notice that section requires, stating when it starts and ends and whether I am entitled to remuneration? I would also be grateful to know what reasonable alternatives were considered beforehand, as section 101(3) requires. I proposed several, including the restrictions certified on 3 July and my return to work proposal of 3 August.
- 3.3 If the arrangement is recreation leave, section 33 of the *Industrial Relations Act 2016* provides that timing is agreed between employee and employer, and that where there is no agreement the employer may decide but must give at least eight weeks' written notice. I have not agreed, and I have not received that notice. Could you let me know which provision is being relied on?
- 3.4 If any part of the period is to be recorded as sick leave, could you let me know the basis? The Employee Capabilities Checklist of 3 July 2026 certified me fit for work with restrictions, and I have been ready, willing and able to attend throughout. I would not want the Health Service's records to show an absence through illness when the position is that I have not been permitted to attend. If any part of the period has already been recorded that way, could it please be corrected.
- 3.5 If the arrangement is none of these, then I remain ready, willing and able to work, and I would be grateful to know when I can return.
- 3.6 Could you also let me know who is conducting the review, and the date by which it is expected to be completed?
- 3.7 Could you tell me what information the Health Service has provided to my income protection insurer (ART Life / QSuper) about my employment status, capacity, and return to work, and provide me with copies? As the subject of that information I ask to see what has been communicated about me.

If the answer to question 3.1 is that no instrument applies to the period, I would ask that the leave simply be re-credited and the period corrected, without the need for any further process.

4 Information about my return to work provided to my insurer but not to me

On 4 August 2026 I received a letter from my income protection insurer, ART Life. It records, on information recently received from my employer, that the Health Service is “*currently unable to accommodate a graduated return to work due to the restrictions identified in your Work Capabilities Checklist.*” It also records that the insurer contacted the Health Service and suggested that I may wish to access my available paid leave in the interim.

I put the following plainly, and without accusation:

- 4.1 A position on my return to work exists and has been communicated, to my insurer. Your letter of 4 August tells me the matter is under review. Both cannot be correct at the same time.
- 4.2 I have asked since early July what decision has been made, by whom and under what instrument. I have not been given that position; my insurer has. A decision affecting my employment should not reach a third party before it reaches me.
- 4.3 The request that I apply my leave appears to originate in the insurer's suggestion rather than in any industrial instrument, which is exactly why question 3.1 matters.
- 4.4 I also note that the Request for Medical Information of 31 July 2026 asks my doctor, at its question 9, what follows “*if we are not able to accommodate the restrictions*”: a premise which, on the insurer's letter, the Health Service had already adopted and communicated externally before the medical information said to be needed for a decision had been received.

Accordingly, could the Health Service please: (a) provide me directly with the position communicated to the insurer, stating who made it, when, and under what instrument (this would also answer question 3.1); (b) confirm whether “unable to accommodate” is the Health Service's position, and if so provide it to me in writing with reasons, since it is a decision about my employment to which I have not been heard; and (c) provide copies of all information given to the insurer about me (question 3.7).

I would also offer this, in the interests of resolving the matter simply. If the Health Service wishes to recall the position communicated to my insurer, I would welcome that: the record with the insurer can be corrected, my leave re-credited, and my return to work arranged within the certified restrictions, and nothing further need be said about how the position came to be communicated. If, on the other hand, the position is maintained, then I ask that the officer who made it address these matters directly: that the decision be provided to me by its maker, with reasons, and that further correspondence concerning my attendance, leave, pay and return to work be routed to and from that officer, so that the matters are dealt with by the person actually deciding them.

5 The income protection characterisation

From 13 July 2026 the Health Service has recorded my absence as income protection without pay. No income protection benefit is being paid to me: I asked the insurer myself, in writing in March 2026, that benefit payments cease, and the last payment was made in May 2026. The present position therefore yields neither wages nor benefit: I am recorded as being on income protection while no income protection is being paid. If the Health Service maintains that characterisation, I ask that it promptly provide the insurer with complete and accurate information about my employment status and the restrictions certified on 3 July 2026, so that any entitlement can be assessed and paid, and that I be copied into what is provided. If the characterisation is not maintained, then the questions above about the correct arrangement apply with the same force to the period from 13 July.

For completeness: my availability to work is unqualified, and has been throughout. My separate request of 3 August under clause 10.3.2 is a request for a prospective change to be agreed for the future; it does not qualify my present availability, and it is not part of this dispute. It continues on its own timeframe under clause 10.3.

6 The status quo while we resolve this

Clause 1.11.4 provides that while the dispute procedure is being followed, the status quo existing before the emergence of the dispute is to continue, and that no party is to be prejudiced as to the final settlement. The position before the matters in dispute arose (that is, before 26 June 2026) was that I was rostered, working and paid. My leave and pay are the subject matter of the dispute, so I ask that no further leave be debited and no further unpaid absence recorded until it is resolved. If that decision sits above your delegation, I am content for it to be referred upward; I am not asking you personally to carry it.

For completeness on clause 1.11.4: the Checklist of 3 July 2026 certifies fitness for work with restrictions. I do not accept that a blanket direction away from the workplace, without a written instrument and without any task-level assessment against the certified restrictions, is a “genuine safety issue” within the meaning of that clause.

I should also mention, simply as a fact relevant to timing, that I have been without wages since 13 July 2026.

7 Timing

Clause 1.11.2(a) contemplates that the Stage 1 procedure should not extend beyond seven days, which falls on Monday 10 August. I would much rather resolve this with you before then than move to the next stage. I am available Wednesday 5 August, 9:00am to 5:00pm, and Thursday 6 August, 9:00am to 5:00pm, and I can make other times work, including outside business hours. I would have my support person and union representative present, and it would help if the answers to the questions above could be available at the discussion.

If a discussion is not possible this week, could the answers to the six questions please be provided in writing by Monday 10 August, so that we are not held up by diary availability. If the dispute is unresolved by 10 August I will refer it to Stage 2 as the clause provides, which I mention only so that the timing is not a surprise.

8 Where I stand

I want to come back to work. I remain ready, willing and able within the Checklist of 3 July 2026, which itself records the pattern as a “continuation of existing arrangement”. My return to work proposal of 3 August stands, as does my request that a psychosocial assessment of the work area be conducted in consultation. If there is anything further you need from me to progress the review, please tell me and I will provide it the same day.

Yours sincerely,

Cory Lea Shepherd
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